

SENATE BILL 2304

By Pody

AN ACT to amend Tennessee Code Annotated, Title 47,
Chapter 18; Title 53 and Title 68, Chapter 221,
relative to fluoride.

WHEREAS, the Tennessee General Assembly finds that the addition of fluoride to public drinking water is a matter of public health concern and individual choice; and

WHEREAS, the Tennessee General Assembly also finds that consumers have limited ability to avoid fluoride exposure when it is added to municipal water supplies or bottled water sold in retail outlets; and

WHEREAS, the Tennessee General Assembly further finds that this State has a compelling interest in protecting the health and autonomy of its residents by ensuring access to fluoride-free drinking water; now, therefore:

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. This act is known and may be cited as the "Tennessee Fluoride-Free Water Act."

SECTION 2. Tennessee Code Annotated, Section 68-221-711, is amended by adding the following as a new subdivision:

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(A) The adding of fluoride or a fluoride-containing compound to drinking water that is intended for human consumption and delivered to consumers through a public water system located in this state by the owner or operator of the public water system.

(B) The prohibition in subdivision () (A) applies to:

(i) All forms of fluoride, including, but not limited to:

- (a) Sodium fluoride;
- (b) Fluorosilicic acid; and
- (c) Sodium fluorosilicate; and

(ii) All compounds intended to raise fluoride levels in water.

SECTION 3. Tennessee Code Annotated, Section 68-221-708(c), is amended by deleting the subsection.

SECTION 4. Tennessee Code Annotated, Section 68-221-709, is amended by deleting the section and substituting the following:

(a) If the quarterly analysis of a water sample from a public water system by a certified laboratory confirms that the level of naturally occurring fluoride in the sample exceeds the maximum contaminant level goal (MCLG) for fluoride established by the U.S. environmental protection agency (EPA), the public water system from which the sample was taken must:

- (1) Obtain laboratory analysis of water samples monthly for fluoride levels;
- (2) Take corrective action to reduce the level of naturally occurring fluoride to a level at or below the MCLG for fluoride established by the EPA; and
- (3) Notify all of its customers that a water sample tested exceeded the MCLG for fluoride established by the EPA in a manner established by the department.

(b) Once the monthly analysis of water samples for fluoride conducted pursuant to subdivision (a)(1) confirms that the fluoride level in samples is less than the MCLG for fluoride established by the EPA for three (3) consecutive months, the public water system may resume quarterly laboratory analysis for fluoride.

SECTION 5. Tennessee Code Annotated, Section 68-221-713(a)(1), is amended by deleting the subdivision and substituting the following:

(1)

(A) Except as provided in subdivision (a)(1)(B), a person who violates or fails to comply with this part, an order of the commissioner or the board issued pursuant to this part, or a rule, regulation, or standard adopted pursuant to this part is subject to a civil penalty of not less than fifty dollars (\$50.00) nor more than five thousand dollars (\$5,000) per day for each day of violation.

(B) A person who violates or fails to comply with Section 2 or 4 of this act, an order of the commissioner or the board issued pursuant to Section 2 or 4 of this act, or a rule, regulation, or standard adopted pursuant to Section 2 or 4 of this act is subject to a civil penalty of not less than one thousand dollars (\$1,000) nor more than five thousand dollars (\$5,000) per day for each day of violation.

SECTION 6. Tennessee Code Annotated, Title 53, is amended by adding the following as a new chapter:

53-16-101.

(a) It is a violation of this chapter for a person to sell, offer for sale, or distribute or dispense for consideration bottled water containing added fluoride within this state.

(b) The prohibition in subsection (a) applies to:

(1) All forms of fluoride, including, but not limited to:

(A) Sodium fluoride;

(B) Fluorosilicic acid; and

(C) Sodium fluorosilicate; and

(2) All compounds intended to raise fluoride levels in water.

53-16-102.

(a) Bottled water containing naturally occurring fluoride that is sold, offered for sale, or distributed or dispensed for consideration in this state must be clearly labeled with the fluoride concentration.

(b) If the concentration level of naturally occurring fluoride in bottled water that is sold, offered for sale, or distributed or dispensed for consideration in this state exceeds seven-tenths of a milligram per liter (0.7 mg/L), the bottle must be clearly labeled with the following warning:

WARNING: This product contains fluoride at levels exceeding the recommended limit for optimal health.

53-16-103.

(a) An agent of the commissioner of agriculture who has probable cause to believe that bottled water is being sold, offered for sale, or distributed or dispensed for consideration in violation of § 53-16-101 or § 53-16-102 shall mark the article as "detained" or "embargoed" and petition a judge for an order of condemnation pursuant to § 53-1-201.

(b) A violation of § 53-16-101 or § 53-16-102 is punishable by a civil penalty of five hundred dollars (\$500). Each bottle of water that is sold, offered for sale, or distributed or dispensed for consideration in violation of § 53-16-101 or § 53-16-102 is a separate violation.

(c)

(1) The commissioner of agriculture or the commissioner's designee shall establish a process by which violations of this chapter may be reported.

(2) The attorney general and reporter may bring an action against a person who violates this chapter to enjoin further violations and to recover a civil penalty of five hundred dollars (\$500) per violation.

(3) A civil penalty collected pursuant to this section must be paid into the general fund of this state.

(4) The prevailing party in an action brought under subdivision (c)(2) is entitled to reasonable attorney's fees, court costs, and expenses, but court costs must not be taxed against the attorney general and reporter or this state in actions commenced under this section.

(5) Jurisdiction for an action brought pursuant to this section is in the chancery court of Davidson County or the chancery court in the county where the person against whom the action is brought is located.

53-16-104.

The department of agriculture shall promulgate rules to effectuate this chapter. The rules must be promulgated in accordance with the Uniform Administrative Procedures Act, compiled in title 4, chapter 5.

SECTION 7. If any provision of this act or its application to any person or circumstance is held invalid, then the invalidity does not affect other provisions or applications of the act that can be given effect without the invalid provision or application, and to that end, the provisions of this act are severable.

SECTION 8. This act takes effect upon becoming a law for the purpose of promulgating rules, the public welfare requiring it. For all other purposes, this act takes effect July 1, 2026, the public welfare requiring it.